

FL-26-001975 ALDANA VS NAVARRO

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-09-16

Motion: Petitioner's Request for Order re Child Custody, etc.—HEARING REQUIRED, in part; DENIED, without prejudice, in part. The child custody and visitation request is not eligible for tentative ruling and was scheduled for child custody mediation on September 2, 2026. Mediation occurred as set and resulted in a temporary order for joint legal custody and Respondent's sole physical custody, with visitation rights to Petitioner, and with both parties to attend therapeutic counseling, all as agreed and/or ordered in the Findings and Order After Hearing (FOAH) of even date. A review hearing on child custody/visitation has been set for October 28, 2026, at 9:30 am, in this Department, telephonically and/or in person. Accordingly, no child custody or visitation matters are at issue for this hearing. Turning to Petitioner's remaining request, an order for psychiatric evaluation, the Court is inclined to deny the request without prejudice. Petitioner's counsel is no doubt aware of the rules governing a motion to compel a psychiatric Independent Medical Examination (IME) under the Civil Discovery Act, which applies in cases filed pursuant to the Family Code. (Code Civ. Proc., § 2032.010 et seq.; Marriage of Boblitt (2014) 223 Cal.App.4th 1004, 1022 [dissolution proceedings not exempt from Civil Discovery Act, rationale applicable to other Family Code cases]; Cal. Rules of Ct., rule 5.12(b),(c).) A psychiatric IME necessarily entails a probing inquiry fraught with constitutional and statutory privacy concerns and therefore entails a noticed motion supported by a clear and specific showing of "good cause." (Code Civ. Proc., § 2032.320(a); Conservatorship of G.H. (2014) 227 Cal.App.4th 1435, 1441; Reuter v. Superior Court (1979) 93 Cal.App.3d 332, 343; see generally, Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (TRG 2026) Ch. 8I-3, § 8:1546 et seq.) Here, not only did Petitioner not offer any points and authorities to support the request, Petitioner's only showing consists of conclusory allegations that Petitioner refers to as his "concerns." None of the procedural requirements for a motion to compel an IME have been satisfied. (See, Code Civ. Proc., §§ 2106.040 [meet and confer], 2032.310 [time, place, manner, conditions, scope and nature of IME], 2032.020 [qualifications], 2032.320 [distance limits, any diagnostic, painful or invasive testing, payment of IME costs].) The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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THERE ARE NO TENTATIVES.

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